TITLE COMMITMENT

Amberly Suites | Birmingham, AL

Commitment No.	TC-41414141
Property	Amberly Suites, 9119 University Lane, Birmingham, AL 70230
Proposed Insured	Vireo Income Properties
Effective Date	January 13, 2021

1. Schedule A - Commitment. Effective Date: January 13, 2021. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Vireo Income Properties. Amount of Insurance: $18,550,000. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AL.

2. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Pemberton Real Estate Fund III. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AL. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

3. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Pemberton Real Estate Fund III to Vireo Income Properties. Provide evidence of authority of signatories. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AL. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

4. Schedule B-II - Exception. Taxes and assessments for the year 2020 and subsequent years, a lien not yet due and payable. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

5. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 11, Page 11, Official Records of the county. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

6. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 272727, as amended. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

7. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AL.

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Disclaimer and Confidentiality

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